

		is no evidence as to other multiplier factors. (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 248, citing <i>Press v. Lucky Stores, Inc.</i> (1983) 34 Cal.3d 311, 322, fn. 12 [aside from contingency, other multiplier factors include “the novelty and difficulty of the questions involved, and the skill displayed in presenting them,” and “the extent to which the nature of the litigation precluded other employment by the attorneys”]; see also <i>Weeks v. Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1174-1175 [availability of statutory fee recovery reduces risks associated with contingency].) As to the request for costs, the motion is DENIED. Moving party has already filed a Memorandum of Costs (Ex. B to motion; ROA 50), and no motion to tax was filed. Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See <i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 457 [“In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;” other internal citations omitted.] To award the same costs for the instant motion as listed in the Memorandum of Costs, would be a double recovery. Moving party shall give notice.
6	Nikova vs. Mercedes-Benz USA LLC 2026-01569577	Motion to Compel Arbitration Defendant Mercedes-Benz USA LLC’s motion to compel arbitration is GRANTED. (9 U.S.C, § 2 [authorizing motion]; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 [Federal Arbitration Act (FAA) governs where arbitration clause states it applies]; <i>Maxwell v. Atria Management Co., LLC</i> (2024) 105 Cal.App.5th 230, 249 [“the procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement;” not present here]; <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 407–408 [even where the FAA substantively applies, it “does not explicitly govern the procedures to be used in state courts,” and thus the procedural rules set forth in the California Arbitration Act (CAA) apply]; Code Civ. Proc., § 1281.2 [authorizing motion to compel arbitration].) Moving party has met its initial burden of presenting evidence of an executed arbitration agreement requiring arbitration of plaintiff’s claims in this action. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i>, <i>supra</i> at 413 [moving party’s initial burden to

	present evidence of arbitration agreement]; <i>Jones v. Jacobson</i> (2011) 195 Cal.App.4th 1, 15 [nonsignatory bears burden to establish standing to enforce agreement]; <i>LaBarbera v. Security National Ins. Co.</i> (2022) 86 Cal.App.5th 1329, 1340-1341 [third party beneficiary]; Chen Decl., Ex. 1, pp. 4-5 [requiring arbitration of “[a]ny claim or dispute, whether in contract, tort or otherwise ... between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, <u>including Mercedes-Benz USA LLC (each a “Third Party Beneficiary”), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract);”</u> emphasis added].) Plaintiff has not shown grounds to deny enforcement. The arbitration provision is broadly worded and encompasses the claims alleged here. (<i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 186–187 [broadly worded arbitration provision encompasses claims which “have their roots in the relationship between the parties which was created by the contract”].) Plaintiff also fails to show that arbitration should be denied on unconscionability grounds. (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 114 [“<i>Armendariz</i>”] [both procedural and substantive unconscionability must be present in order for a court to exercise its discretion to refuse to enforce a contract under the doctrine of unconscionability].) Some procedural unconscionability is present, as the arbitration rules were not provided. (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 244–245 [collecting cases and noting that “the failure to provide a copy of the governing rules ‘contributes to oppression because the employee ‘is forced to go to another source to find out the full import of what he or she is about to sign and must go to that effort prior to signing;’” citations omitted]; but see <i>Bigler v. Harker School</i> (2013) 213 Cal.App.4th 727, 737 [“the absence of the AAA rules is of minor significance to our analysis”].) Plaintiff fails to show substantive unconscionability, which is also required. (<i>Armendariz, supra</i> at 114.) Rather, plaintiff’s Opposition merely restates her procedural unconscionability arguments in this regard, which alone are insufficient. (<i>Id.</i>) Plaintiff Iliana Nikova is ordered to arbitrate her claims in this action against moving party, pursuant to the arbitration provision
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		in the Consumer Lease Agreement. This action is stayed pending completion of arbitration. (Code Civ. Proc., § 1281.4.) An Alternative Dispute Resolution (ADR) review hearing is scheduled for <i>March 12, 2027 at 8:30 a.m. in Department C44.</i> <i>The Case Management Conference set October 16, 2026 is vacated.</i> Moving party shall give notice.
7	Piper vs. Smith 2025-01518710	Motion to Quash Service of Summons Defendants Frances Marie Smith and Transforming Live Counseling LLC's motion for order quashing service of summons and to dismiss Defendants from this action pursuant to Code of Civil Procedure §§ 418.10(a)(1) and 581 (h) is denied on procedural grounds. The motion is untimely. It is undisputed defendants were served with the summons and complaint on October 25, 2025. (See ROAs 14 and 16.) As such, the time to respond expired November 24, 2025. This motion was not filed until February 10, 2026. Defendants provided no explanation for this delay and did not obtain a stipulation from plaintiff to waive the time requirement. Defendant Smith to give notice. Motion for Leave to File Special Motion to Strike (ROA 37) Defendants Frances Marie Smith and Transforming Live Counseling LLC's motion for leave to file an anti-SLAPP motion beyond the 60 day statutory time period is GRANTED. The facts demonstrate that the claim may be barred by the litigation privilege and an early determination of that issue is in the parties' (and the court's) best interest. Further, the delay in filing the motion was not significant. Smith filed it shortly after she retained counsel. There is no demonstrable prejudice to Piper in hearing the motion now. Defendant Smith to give notice. Motion to Strike - Anti SLAPP (ROA 38) Defendants Frances Marie Smith and Transforming Live Counseling LLC's special motion to strike is DENIED. Even if